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Strategic Exam Preparation for Internationally Qualified Lawyers

◆ FREE SAMPLE CHAPTER ◆

FOUNDATIONS OF CANADIAN LAW

Part I: Basic Theories of Law

*This is a free sample from the full NCA Hub strategic notes bundle.
The complete notes cover all exam topics with IRAC frameworks,
IF → THEN trigger tables, decision trees, and EXAM TRAP warnings.*

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Before you can understand Canadian law, you need to understand what law IS and what it is FOR. FCL is unique: essay questions may ask you to compare, critique, or apply legal theories. Every theory below is potentially testable.

Topic 1: Legal Positivism

Overview

Legal positivism makes one powerful claim: law is valid because it was properly made by the right authority, NOT because it is morally good. A law can be unjust and still be law. The positivist judge asks: 'Was this law validly enacted?' — not 'Is this law good?'

Key Rules

- H.L.A. Hart's Rule of Recognition: Every legal system has an ultimate rule identifying which other rules count as law
- In Canada: A rule is law if enacted by Parliament or a provincial legislature within constitutional authority (ss. 91–92), or recognised by courts as valid common law, AND does not violate the Constitution/Charter
- John Austin: Law = command of a sovereign backed by sanctions
- Joseph Raz: Law makes authoritative claims to regulate conduct

Leading Case

Exam Application

If the exam asks which theory applies to a scenario where a court enforces a statute despite its harsh result, that is positivism. Connect to the Rule of Recognition and the Canadian constitutional framework. Acknowledge the criticism: Nazi laws were 'valid' under positivism — this is why Natural Law remains an important counterpoint.

Topic 2: Natural Law Theory

Overview

Natural law theory argues law must reflect moral principles or higher values to be truly binding. The famous Latin maxim: *lex iniusta non est lex* — 'an unjust law is no law at all.' This directly opposes positivism: a law that violates fundamental moral principles is not truly law — it is coercion dressed as law.

Key Thinkers

- **Thomas Aquinas (1225–1274):** Eternal Law > Divine Law > Natural Law > Human Law. Human law must be consistent with natural law to be valid.
- **Lon Fuller (1902–1978):** Law has an 'inner morality' — 8 procedural requirements: (1) General; (2) Publicly promulgated; (3) Prospective (not retroactive); (4) Clear; (5) Non-contradictory; (6) Possible to obey; (7) Stable; (8) Congruent official action.
- **Ronald Dworkin:** Law includes principles of justice. Judges interpret law to make it the 'best it can be.' There is always a 'right answer' in hard cases found through principled interpretation.

Natural Law in Canadian Law

- Charter interpretation — courts read rights broadly to protect dignity, equality, freedom
- Unwritten constitutional principles (rule of law, democracy, judicial independence) — part of the Constitution even though not expressly written
- Equitable doctrines like unconscionability and unjust enrichment — courts grant relief where strict law produces injustice

Topic 3: Feminist Legal Theory

Overview

Feminist legal theory argues law has historically been made by men, for men, reflecting male perspectives. The project is to critique this and reform law to achieve real equality for women and gender-diverse people.

Key Concepts

- **Formal vs. Substantive Equality:** Formal = treat everyone the same. Substantive = recognise that treating unequal people identically can produce unequal outcomes. Charter s.15 moved from formal to substantive equality (*Andrews v. Law Society of BC*).
- **The Public/Private Divide:** Historically, law treated the 'private' sphere (family, home) as outside legal regulation. Feminist theory challenges this divide — 'private' oppression is a public concern. Example: marital rape was once not illegal because courts said what happens in marriage is 'private.'
- **Intersectionality (Kimberlé Crenshaw):** A Black woman does not experience 'racism + sexism' as separate things. Her experience is a unique intersection — anti-Black racism directed specifically at Black women that neither Black men nor white women face in the same way.

Leading Case

Topic 4: Critical Legal Studies (CLS)

Overview

CLS is a radical critique: Law is politics. Legal rules are indeterminate — they can be interpreted in multiple ways — so judges inevitably decide based on political/social beliefs, not 'neutral' legal reasoning. Law legitimizes existing power structures.

Key Claims

- **Indeterminacy:** For most legal questions, the law does not dictate a single 'correct' answer. Precedents conflict. Statutes are ambiguous. Judges CHOOSE based on ideology.
- **Legitimation:** Law makes existing inequalities seem natural. By presenting outcomes as 'neutral legal reasoning,' law legitimizes the status quo. Property law protects existing wealth while presenting this as 'neutral application of law.'
- **Rights Critique:** Rights are indeterminate and unstable. They can advance OR block social change.

CLS in Canadian Law

- Aboriginal rights doctrine: the Van der Peet test limits Indigenous rights using colonial assumptions masked as neutral law
- Administrative law: 'reasonableness' standard masks political choices as technical determinations
- Contract law: 'freedom of contract' treats employers and workers as 'equal' contracting parties despite vast power imbalances

Topic 5: Law and Economics (L&E)

Overview

Law and Economics applies economic analysis to law. Core claim: Legal rules should promote EFFICIENCY. Law should be designed so that resources end up with whoever values them most.

Key Concepts

- **Coase Theorem:** With ZERO transaction costs, the initial assignment of legal rights does not matter for efficiency — parties will bargain to the efficient outcome. BUT: transaction costs ARE real, so initial legal assignment DOES matter in practice.
- **Richard Posner — Wealth Maximization:** Common law naturally evolves toward efficiency. Inefficient rules create incentives to litigate. Through litigation, law moves toward wealth-maximizing outcomes.
- **Guido Calabresi — Least-Cost Avoider:** Who should bear liability? Whoever can avoid the accident at lowest cost. Example: driver is least-cost avoider in car-pedestrian accidents — negligence law is efficient because it places liability on the party best positioned to prevent harm.

Topic 6: Critical Race Theory (CRT) and Racism in Law

Overview

CRT argues race is not just a personal characteristic — it is a SOCIAL and LEGAL CONSTRUCT used to create and maintain inequality. Law produces and reproduces racial hierarchy, even when it appears neutral.